

## SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

[illegible]

## **Section A - Solicitation/Contract Form**

Valve, Relief

## Section B - Supplies or Services & Prices or Costs

### Additional Information/Notes

| Item | Supplies/Service                                           | Quantity | Unit | Unit Price | Amount |
|------|------------------------------------------------------------|----------|------|------------|--------|
| 0001 | Valve, Relief<br><br>Pricing Arrangement: Firm Fixed Price | 30       | Each |            |        |

## Section C - Description/Specifications/Statement of Work

### Requirements

3/4 NPT/F X 3/4 NPT/F

7-225 PSIG RANGE

MATL: BRONZE W/ EPDM O-RINGS

CPV P/N: 150 (PL 0334) W/ EPDM O-RINGS

NTFC: RV-134E

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

#### C-223-H003 EXCLUSION OF MERCURY (NAVSEA) (MAR 2019)

(Mar 2019)

(a) Definitions. As used in this text:

*Article* means a manufactured item other than a fluid or particle: (i) which is formed to a specific shape or design during manufacture; (ii) which has end use function(s) dependent in whole or in part upon its shape or design during end use; and (iii) which under normal conditions of use does not release more than very small quantities, e.g., minute or trace amounts of a hazardous chemical, and does not pose a physical hazard or health risk to employees.

*Boundary of containment* means a continuous tight seal (barrier) to prevent the release of functional mercury during normal operation and maintenance. Examples include the exterior of a fluorescent lamp, glass capsule of a mercury switch, and container for mercury reagents. A double boundary of containment consists of two independent seals.

*Functional mercury* means mercury or mercury compound(s) contained in equipment that is required for the equipment to operate properly, such as that found in mercury switches, fluorescent lamps, flat-panel monitors, thermostats, thermostat probes, small coin type batteries, barometers, and dental amalgams.

*Hardware* means any article, container, piece of material, individual part, subassembly, assembly, component, or system to which mercury control requirements apply.

*Mercury-free* means hardware that does not contain functional mercury and is not contaminated by mercury or mercury compounds.

*Portable* means items that are frequently transported during normal operation. Desk lamps, shop lights, and hand-held instruments are considered portable, while bulbs in stationary light fixtures are not. In general, items that require transport only during maintenance, installation, and removal of the items are not considered portable.

(b) The Contractor, and all subcontractors and vendors, shall ensure that mercury or mercury containing compounds are not intentionally added to, or come in direct contact with, hardware or supplies furnished under this contract.

(1) The Contractor shall ensure that mercury and mercury compounds are not taken onboard naval vessels by Contractor, subcontractor, or vendor personnel except for functional mercury used in batteries, dental amalgams, fluorescent lamps, flat-panel monitors, required instruments, sensors or controls, weapon systems, and chemical analysis reagents specified by the Naval Sea Systems Command (NAVSEA).

(2) Portable fluorescent lamps and portable instruments containing elemental mercury must be shock-proof in accordance with MIL-DTL-901E entitled Requirements for Shock Tests, H.I. (High Impact) Shipboard Machinery, Equipment, and Systems and have mercury enclosed by a double boundary of containment. Some devices with liquid crystal display (LCD) screens utilize a fluorescent bulb backlight to illuminate the LCD screen. No additional restrictions or controls apply to devices with LCD screens; however, the Contractor shall remove the LCD screen and seal it in plastic following any evidence that the backlight failed.

(3) For Submarines, any use of mercury containing items must be approved as required by the Nuclear Powered Submarine Atmosphere Control Manual (S9510-AB-ATM-010/U) Volume 1.

(4) The Contractor shall ensure that mercury and mercury compounds do not contact hardware surfaces in systems covered by NAVSEA Manual NAVSEA 0989-064-3000 entitled Cleanliness Requirements for Nuclear Propulsion Plant Maintenance and Construction, submarine air systems, level I systems per NAVSEA Publication 0948-LP-045-7010, NAVSEA Material Control Standard, or the submarine safety program (SUBSAFE) surfaces during maintenance or repair. Such hardware is designated as mercury-free. The Contractor shall ensure that all other hardware that could be structurally degraded by contamination with elemental mercury or reactive mercury compounds is separated from it by sufficient distance, or boundaries of containment that effectively prevents contact in all but the most extreme circumstances.

(5) The Contractor shall check any hardware surfaces in the above systems which are known or suspected to have come in contact with mercury or mercury compounds for evidence of structural degradation and external mercury contamination. The existence of external mercury contamination can be determined following MIL-STD-2041D entitled Control of Detrimental Materials.

(6) The presence of mercury in a product may be determined by checking product labeling on material safety data sheets or safety data sheets. Chemical analysis is not required.

(7) The Contractor shall dispose of any mercury and mercury compounds in accordance with OPNAV Manual (OPNAV M-5090.1) entitled Environmental Readiness Program Manual of 10 January 2014.

(8) If the use of mercury or mercury compounds cannot be avoided, a risk assessment and waiver request, if required, must be performed and submitted per the NAVSEA Hazardous Material Avoidance Process (T9070-AL-DPC-020/077-2). For systems covered by the NAVSEA Manual NAVSEA 0989-064-3000 entitled Cleanliness Requirements for Nuclear Propulsion Plant Maintenance and Construction, submit the risk assessment and waiver request, if required to Nuclear Propulsion (NAVSEA 08).

(c) In all cases where mercury or a mercury compound has contacted hardware surfaces required to be mercury-free the Contractor shall immediately provide a report to the NAVSEA Dry Environmental Systems and Hazardous Materials (NAVSEA 05P5) via the cognizant contract administration safety office. Reports concerning systems covered by NAVSEA Manual 0989-064-3000 must include NAVSEA Nuclear Propulsion Directorate (SEA 08) in the distribution. Reports must be in letter form and include the date and details of the contact, the surfaces contacted, the recovery actions taken, and the status of the affected surfaces.

**(End of Text)**

## Section D - Packaging and Marking

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

**D-246-H003** **WARRANTY NOTIFICATION FOR ITEM(S) —ALTERNATE I (NAVSEA) (APR 2024)** **(Apr 2024)**

The Contractor shall apply a permanent warranty notification stamping or marking on each warranted deliverable end item and its container in accordance with MIL-STD-129R with Change 3 dated 25 February 2023 and MIL-STD-130N(1) dated 16 November 2012. The notification shall be placed in close proximity to other required stamping or markings so as to be easily readable by personnel. The warranty notification shall read:

THIS ITEM WARRANTED UNDER CONTRACT \_\_\_\_\_ TO CONFORM TO DESIGN,  
MANUFACTURING, AND PERFORMANCE REQUIREMENTS AND BE FREE FROM DEFECTS  
IN MATERIAL AND WORKMANSHIP FOR \_\_\_\_\_ FROM DATE OF ACCEPTANCE.  
IF ITEM IS DEFECTIVE NOTIFY \_\_\_\_\_ AND PCO.

**(End of Text)**

**D-247-H004** **MARKING AND PACKING LIST(S) – BASIC (NAVSEA) (FEB 2022)** **(Feb 2022)**

(a) Marking. Shipments, shipping containers and palletized unit loads shall be marked in accordance with ASTM-D-3951-18 approved 1 May 2018, Standard Practice for Commercial Packing.

(b) Packing List(s). A packing list (DD Form 250 Material Inspection and Receiving Report may be used) identifying the contents of each shipment, shipping container or palletized unit load shall be provided by the Contractor with each shipment. When a contract line item identified under a single stock number includes an assortment of related items such as kit or set components, detached parts or accessories, installation hardware or material, the packing list(s) shall identify the assorted items. Where assortment of related items is included in the shipping container, a packing list identifying the contents shall be furnished.

(c) Master Packing List. In addition to the requirements in paragraph (b) above, a master packing list shall be prepared where more than one shipment, shipping container or palletized unit load comprise the contract line item being shipped. The master packing list shall be attached to the number one container and so identified.

(d) Part Identification. All items within the kit, set, installation hardware or material shall be suitably segregated and identified within the unit pack (s) or shipping container by part number and/or national stock number.

**(End of Text)**

## Section E - Inspection and Acceptance

### Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                                                                                                                          |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: QA Level - E 7 Days</p> <p>DoDAAC: N4523A<br/>CountryCode: USA</p> <p>PUGET SOUND NAVAL SHIPYARD IMF<br/>MAINT FAC REC OFFICER BLDG 514, 1400 FARRAGUT AVE<br/>BREMERTON, WA 98314-5001<br/>UNITED STATES</p> <p>Sherrie Parris, 2305.63<br/>Email: sherrie.k.parris.civ@us.navy.mil<br/>Telephone: 360-476-5897</p> |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

## Section F - Deliveries or Performance

### DELIVERY NOTIFICATION REQUIREMENT

1. Email Contracting POC with SHIPMENT TRACKING NUMBER **andrew.r.smith7.civ@us.navy.mil**

2. The contractor shall notify the designated point of contact (POC) listed below 24 hours prior to delivery of supplies to Commander Navy Region Northwest (CNRNW) commands listed below. This notification shall include the following information: A. Name of vendor supplying the material B. Item(s) to be delivered C. Name of delivery/drayage contractor delivering item(s) D. Expected time of delivery E. Name of driver(s), if known F. Type of delivery vehicle, if known

3. Notice shall be provided by FAX/EMAIL to the applicable POC listed below:

COMMAND POC PHONE Puget Sound Naval Shipyard **Sherrie Parris 360-476-5897, or Teri Rasmussen 360-476-5898.**

EMAIL: **sherrie.k.parris.civ@us.navy.mil**

**teri.a.rasmussen.civ@us.navy.mil**

4. Prior notification is not required for regularly scheduled deliveries with badged drivers in trucks with DOD decals.

5. All deliveries to CNRNW commands must pass through the base Truck Inspection Station. All delivery vehicles and any weight handling equipment are subject to inspection. Drivers should expect delays due to heightened security.

6. Drivers entering the Controlled Industrial Area (CIA) within Puget Sound Naval Shipyard and the Operations Area of Naval Base Kitsap-Bangor Annex MUST be United States citizens and should be prepared to provide appropriate proof of U.S. citizenship to security personnel.

### Overall Contract Delivery Period

Contractor  
Destination

| Line Item | Delivery Schedule                                     | Quantity | Address and POC                                                                                                                                                                                                                                                                           | Special Handling/Notes                   |
|-----------|-------------------------------------------------------|----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------|
| 0001      | Delivery On Or Before<br>Delivery Date 09 Oct<br>2026 | 30 Each  | Ship To<br>DoDAAC: N4523A<br>CountryCode: USA<br>PUGET SOUND NAVAL SHIPYARD IMF<br>MAINT FAC REC OFFICER BLDG 514, 1400<br>FARRAGUT AVE<br>BREMERTON, WA 98314-5001<br>UNITED STATES<br><br>Sherrie Parris, 2305.63<br>Email: sherrie.k.parris.civ@us.navy.mil<br>Telephone: 360-476-5897 | FoB Details<br>Contractor<br>Destination |



## Section G - Contract Administration Data

### DFARS Clauses Incorporated by Full Text

#### 252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

##### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

### COMBO

*(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)*

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

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*(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)*

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| <i>Field Name in WAWF</i> | <i>Data to be entered in WAWF</i> |
|---------------------------|-----------------------------------|
| Pay Official DoDAAC       | <u>N50082</u>                     |
| Issue By DoDAAC           | <u>N4523A</u>                     |
| Admin DoDAAC              | <u>N4523A</u>                     |
| Inspect By DoDAAC         | <u>N4523A</u>                     |
| Ship To Code              | <u>N4523A</u>                     |
| Ship From Code            | —                                 |
| Mark For Code             | —                                 |
| Service Approver (DoDAAC) | —                                 |
| Service Acceptor (DoDAAC) | —                                 |
| Accept at Other DoDAAC    | —                                 |
| LPO DoDAAC                | <u>N4523A</u>                     |
| DCAA Auditor DoDAAC       | —                                 |

|                 |       |
|-----------------|-------|
| Other DoDAAC(s) | _____ |
|-----------------|-------|

(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

**askaccountspayable@us.navy.mil**

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

## Section H - Special Contract Requirements

### Section I - Contract Clauses

| Number       | Title                                                              | Effective<br>Date | Variation               |                   |
|--------------|--------------------------------------------------------------------|-------------------|-------------------------|-------------------|
|              |                                                                    |                   | Alternate/<br>Deviation | Effective<br>Date |
| 52.204-10    | Reporting Executive Compensation and First-Tier Subcontract Awards | JUN 2020          |                         |                   |
| 52.219-28    | Post award Small Business Program Representation                   | JAN 2025          |                         |                   |
| 52.222-36    | Equal Opportunity for Workers with Disabilities                    | JUN 2020          |                         |                   |
| 52.225-1     | Buy American Act - Supplies                                        | OCT 2022          |                         |                   |
| 252.211-7003 | Item Unique Identification and Valuation                           | JAN 2023          |                         |                   |
| 252.211-7008 | Use of Government - Assigned Serial Numbers                        | SEP 2010          |                         |                   |
| 252-225-7021 | Trade Agreements - Basic                                           | FEB 2024          |                         |                   |

#### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                       | Effective<br>Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|-------------------------|--------------------------------|
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                         | Jan 2017          |                         |                                |
| 52.204-13 | System for Award Management-Maintenance. (Deviation)                                                                                                        | Feb 2026          |                         |                                |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation) | Feb 2026          |                         |                                |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)                                                                                 | Feb 2026          |                         |                                |
| 52.212-4  | Terms and Conditions-Commercial Products and Commercial Services. (Deviation)                                                                               | Feb 2026          |                         |                                |
| 52.219-6  | Notice of Total Small Business Set-Aside. (Deviation)                                                                                                       | Feb 2026          |                         |                                |
| 52.222-3  | Convict Labor. (Deviation)                                                                                                                                  | Feb 2026          |                         |                                |
| 52.222-19 | Child Labor-Cooperation with Authorities and Remedies. (Deviation)                                                                                          | Feb 2026          |                         |                                |
| 52.222-40 | Notification of Employee Rights Under the National Labor Relations Act. (Deviation)                                                                         | Feb 2026          |                         |                                |
| 52.222-50 | Combating Trafficking in Persons. (Deviation)                                                                                                               | Feb 2026          |                         |                                |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                                                                                        | May 2024          |                         |                                |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.                                                                                           | Oct 2018          |                         |                                |

#### DFARS Clauses Incorporated by Reference

| Number       | Title                         | Effective<br>Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|--------------|-------------------------------|-------------------|-------------------------|--------------------------------|
| 252.204-7022 | Expediting Contract Closeout. | May 2021          |                         |                                |

#### DFARS Clauses Incorporated by Full Text

|              |                                                                                               |            |
|--------------|-----------------------------------------------------------------------------------------------|------------|
| 252.204-7021 | Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. | (Nov 2025) |
|--------------|-----------------------------------------------------------------------------------------------|------------|

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: \_\_\_\_\_  
*Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)* for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

Section J - List of Attachments

Attachments:

| Number | Attachment Name | Attachment Description | Reference Identifier | Date        |
|--------|-----------------|------------------------|----------------------|-------------|
| 01     | 60077177 ODS    | Specification          | 60077177 ODS         | 13 Mar 2026 |

## **Section K - Representations, Certification, & Other Statements**

## **Section L - Instructions, Conditions, & Notices to Offerors or Quoters**

## **Section M - Evaluation Factors for Award**

### **52.212-2 Evaluation-Commercial Products and Commercial Services. (Nov 2021)**

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

#### **TECHNICAL**

**-Solicitation Compliance**

**-Product Specifications As Per Drawing Sketch and Ordering Data Sheet (ODS)**

**-Delivery Lead time Per 52.211-9**

#### **PAST PERFORMANCE**

#### **PRICE**

Technical and past performance, when combined, are **EQUAL TO PRICE**.

(b) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)